J. K. Pal, LL.M. (Medalist)
3rd Floor
98 – A, Desh Bandhu Road East
Kolkata – 700035

Confidential

23.02.2010

Smt. Prativa Patil,
Visitor of IIT Kharagpur
Hon'ble President of India
Rashtrapati Bhavan, New Delhi

May it please Your Excellency

I would like to inform you that from the attached Time Table of the Rajib Gandhi School of Intellectual Property Law (RGSOIPL, IIT Kharagpur, W.B.) it is evident that Mr. Tapas Bandopadhyay (TB) is teaching the Copy Rights and IT Law subject for the 3 (Three) years LL.B. Classes. But so far I know that he did not possess the requisite qualifications of LL.B. degree for teaching law subjects which may be established from the enclosed Bio-data submitted to the RGSOIPL. There are also other faculties namely Ms. Padmavati Manchikanti (PM) and Ms. Archana Chugh (AC) (copy enclosed) teaching Law subjects having no law degree which is required as per the Bar Council of India Rules.

The contention of the Director and PIO of IIT Kharagpur is that the programme in IIT Law School is specially designed to have law and non law components in various intellectual property rights courses. As such various science faculties are needed for science components in these courses. This contention may not be tenable because Copy Right and IT Law cannot be taught by the person not having LL.B. degree.

Under the above circumstances, I request you to kindly make an inquiry and to take appropriate action for teaching law subjects by the faculties not having qualifications in Law.

Kindly acknowledge the receipt of this letter.

Thanking you

Yours faithfully

(J.K.Pal)
23/02/2010
O/C

Enclosures:

1. Bio- Data of TB, AC, PM
2. Time Table of RGSOIPL
3. RTI Reply No HT/3-9/187/SG/000146/466, dated 17.03.2009
4. Bar Council of India Rules.

Indian Institute of Technology
Kharagpur – 721302

Professor – 40

APPLICATION FOR FACULTY POSITIONS

(Please type or write in block ink)

ADVERTISEMENT NO.	REGISTRATION NUMBER*
NOT MENTIONED ON WEBSITE	



1. POST APPLIED FOR: ASSISTANT PROFESSOR

IN THE DEPTT./CENTRE/SCHOOL OF: RAJIV GANDHI SCHOOL OF INTELLECTUAL PROPERTY LAW

Specialization: PATENTS LAW

2. NAME IN FULL (in block letters)

MR./MRS./MISS/DR./PROF. ARCHANA ..... CHUGH (SURNAME)

3. PERSONAL DATA :

Date of Birth (Day / Month / Year)	Place of Birth: Town/Village	District	State	Nationality
20 / 08 / 1973	LUDHIANA	LUDHIANA	PUNJAB	INDIAN

Married: MARRIED / Single

Do you belong to Scheduled Caste / Tribe**: Yes / No ✓ NO

Mailing Address:
Lethbridge Research Centre - Agriculture & Agri-Food Canada, P.O. Box 3000, 5403-1st Ave South, LETHBRIDGE, AB T1J 4B1 CANADA
Phone 1-403-317-3358 Fax:
E-mail chughA@agr.gc.ca/OR archanachugh@gmail.com

Permanent Address:
CP-225, MAURYA ENCLAVE, PITAMPURA, DELHI - 110088, INDIA
Phone 91-11-27311463 Fax:

4. SALARY DETAILS of present (or last) position

Scale of pay	Basic pay	Allowances	Total	Time required to Join if selected	Minimum basic Salary acceptable
Working as Visiting Fellow at Agriculture Canada			CAD $ 43,761/ annum	July '07	Rs 30,000 - Rs 35,000 Negotiable (Total + Allowances)

5. EDUCATIONAL QUALIFICATIONS :

Degree/Examination	University/Institution	Year	Discipline	Division/ Class	% of Marks	Rank in Board/University
Ph.D.	University of Delhi	2002	Plant Molecular Biology	-NA-	-NA-	-NA-
M.Tech. or Equiv./ M.Sc./M.S.	Guru Nanak Dev University	1996	Biotechnology	I	67%	III RANK IN DEPT.
B.Tech. or Equiv./ B.Sc./B.A.	University of Delhi	1993	Botany (Honours)	I	71.0%	III RANK IN DEPT.
H.S. or Equivalent	CBSE, DELHI	1990	English, Physics, Chemistry, Maths	I	83.2%	VII RANK IN SCHOOL
Madhyamik/Matric or Equivalent	CBSE, DELHI	1988	Biology, English, Sanskrit, Social Studies, Science, Maths	I	77.0%	VIII RANK IN SCHOOL
Any other						

* To be filled in by the office

** If yes, attested copy of certificate from competent authority to be attached

AP/RGSIPL/16

Indian Institute of Technology
Kharagpur – 721302

APPLICATION FOR FACULTY POSITIONS
(Please type or write in black ink)

ADVERTISEMENT NO.	REGISTRATION NUMBER*
—	



1. **POST APPLIED FOR** ASSISTANT PROFESSOR

IN THE DEPTT./CENTRE/SCHOOL OF RAJIV GANDHI SCHOOL OF INTELLECTUAL PROPERTY

Specialization : IPR

2. **NAME IN FULL** (in block letters)

MR/MRS./MISS/DR./PROF. TAPAS KUMAR | BANDYOPADHYAY (SURNAME)

3. **PERSONAL DATA :**

Date of Birth (Day / Month / Year)	Place of Birth: Town/Village	District	State
05 / 09 / 1971	DURGA-PUR		

Nationality INDIAN

Married ☑ Single ☐

Do you belong to Scheduled Caste / Tribe**
Yes ☐ No ☑

Mailing Address
24/1 JOYDEV AVE
DURGAPUR-5
BURWAN, 713205
Phone 0343-2600062 Fax:
E-mail : tapco_dolan@yahoo.com
09818922857

Permanent Address
Village - Polmi
Post - Polmi
Dist - Purulia
Phone — Fax: —

4. **SALARY DETAILS** of present (or last) position

Scale of pay	Basic pay	Allowances	Total	Time required to Join if selected	Minimum basic Salary acceptable
13,750 – 19000	13,750	As admissible	26,000	THREE MONTH	Yes.

5. **EDUCATIONAL QUALIFICATIONS :**

Degree/Examination	University/Institution	Year	Discipline	Division/ Class	% of Marks	Rank in Board/University
Ph.D.	IIT- KHARAGPUR	2003	Metl Mat. Engg	—	—	—
M.Tech. or Equiv./ M.Sc./M.S.	B.E College, Shibpur	1999	"	I	74.6	1
B.Tech. or Equiv./ B.Sc./B.A.	Kolkata/B.E college, Shib	1994	"	I	71.6%	1 –
H.S. or Equivalent	~~WBBSE~~ WBCHSE	1988	SCIENCE	II	56.2%	—
Madhyamik/Matric or Equivalent	WBBSE	1986	—	I	71%	—
Any other						

* To be filled in by the office
** If yes, attested copy of certificate from competent authority to be attached

Contd....2

AP/RGSOIPL/3

Indian Institute of Technology
Kharagpur – 721302

APPLICATION FOR FACULTY POSITIONS

(Please type or write in black ink)



ADVERTISEMENT NO.	REGISTRATION NUMBER*
.....	.....

1. POST APPLIED FOR
.....ASSISTANT PROFESSOR.....

IN THE DEPTT./CENTRE/SCHOOL OF
RAJIV GANDHI SCHOOL OF INTELLECTUAL PROPERTY LAW

Specialization .....

2. NAME IN FULL (in block letters)

MR/~~MRS/MISS~~/DR./~~PROF~~ PADMAVATI | MANCHIKANTI
SURNAME

3. PERSONAL DATA :

Date of Birth			Place of Birth			Nationality
Day	Month	Year	Town/ Village	District	State	Married ☑ Single ☐
23	03	1971	DURGAPUR	BURDWAN	WEST BENGAL	Do you belong to Scheduled Caste / Tribe** Yes ☐ No ☑

Mailing Address	Permanent Address
B89, IIT CAMPUS	B89, IIT CAMPUS
KHARAGPUR – 721302	KHARAGPUR – 721302
Phone 282935 Fax:	Phone 282935 Fax:
E-mail ~~[illegible]~~ mpadma@agfc.iitkgp.ernet.in	

4. SALARY DETAILS of present (or last) position

Scale of pay	Basic pay	Allowances	Total	Time required to Join if selected	Minimum basic Salary acceptable
	15,000	–	15,000/-	15 DAYS	20,000/-

5. EDUCATIONAL QUALIFICATIONS :

Degree/Examination	University/Institution	Year	Discipline	Division/ Class	% of Marks	Rank in Board/University
Ph.D.	Univ. OF HYDERABAD	1999	PLANT SCIENCES	I		
~~M.Tech. or Equiv.~~ M.Sc./M.~~S~~	- do -	1993	BIOTECHNOLOGY	I	85	
~~B.Tech. or Equiv.~~ B.Sc./B.A.	ST. JOSEPH'S COLLEGE, VISAKHAPATNAM	1991	CHEMISTRY, BOTANY, ZOOLOGY	I	80	
H.S. or Equivalent	- do -	1988		I	80	
Madhyamik/Matric or Equivalent	SRI KRISHNA VIDYA MANDIR	1986		I		
Any other						

* To be filled in by the office
** If yes, attested copy of certificate from competent authority to be attached

Contd....2

Annex

Indian Institute of Technology Kharagpur
Rajiv Gandhi School of Intellectual Property Law

		7.30-8.25	8.30-9.25	9.30-10.25	10.30-11.25	11.30-12.25	1.30-2.25	2.30-3.25	3.30-4.25	4.30-5.25
Mon	LL.B I		Property Law SKN		Constitution AD	Legal res. KKG			Law of Crimes DD	
	LL.B III				Copyright TB			Family Law SKN/AD	Patents MP	
	LL.B. V			Other forms of IPR AC	Private Intl. Law KDR			Interpretation of Statutes AD/NKC	Library Study Hours	
Tue	LL.B I		Legal Res MP	Crimes DD	Contract ID			Moot Court		
	LL.B III		Copyright TB/ST	Family Law SKN/AD		Patents MP			Library Study Hours	
	LL.B. V			Other forms of IPR AC		Private Intl. Law KDR			IT Law TB	Interpretation of Statutes
Wed	LL.B I		Constitution AD	Library Study Hours		Tort AD		Legal Res. DS		
	LL.B III		Copyright TB	Administrative Law DD	Patents	Company Law ID		Seminar		
	LL.B. V		Drafting /Pleading SKN		Public Intl Law KDR					
Thurs	LL.B I		Tort AD		Constitution AD	Property SKN			Contract ID	
	LL.B III		Adm. Law DD		Company Law ID			Moot Court		Elective I MP
	LL.B. V		IT Law TB	Other forms of IPR AC				Drafting/ Pleading SKN		
Fri	LL.B I		Constitution AD			Tort AD			Seminar	
	LL.B III		Company Law ID		Ad. Law DD	Patents MP			Elective I MP	
	LL.B. V		Moot Court on IPR		Public Intl. Law KDR			IT Law TB		Intr. Of Statutes AD/NKC

Intellectual Property Law Kharagpur

भारतीय प्रौद्योगिकी संस्थान
खड़गपुर : 721 302, भारत

INDIAN INSTITUTE OF TECHNOLOGY
KHARAGPUR - 721302, INDIA

Dr. T. K. Ghosal, Deputy Registrar
and Public Information Officer

SPEED POST
No.: HT/3-9/187/SG/000146 | 466
Dated: 17.03.2009

To
Shri Jadab Kumar Pal
B-4/3, Ist Floor
205, B. T. Road
KOLKATA – 700 108

Subject: Complaint received from Mr. Jadab Kumar Pal under Section 18 of the RTI Act, 2005 and the direction dated 24.02.2009 received on 03.03.2009 of Mr. Shailesh Gandhi, Hon'ble Information Commissioner, CIC, New Delhi (File No.CIC/SG/C/2008/000146)

Dear Shri Pal,

In your RTI Application dated 02.12.2008 contains following issues:

Issue No.(1) (a) an allegation against the Registrar alleging illegal gratification of Rs.9 lakhs for (b) appointing Assistant Professor in RGSOIPL having no LL. B. Degree as required by the Bar Council of India.

Our response:

(a) The said allegation was also made earlier vide your application dated 25.09.2008 against which through our response vide our Letter No. HT/3-9/187/121/332 dated 21.10.2008 we informed that the Institute does not have any such information.

The above issue is an allegation and not an information to be supplied and hence we are not in a position to supply any such issues as IIT does not have any such information about any alleged act against the Registrar

(b) Allegation relating to appointment of Assistant Professors violating BCI Rules. The BCI Rules prescribes LL. M. Degree for faculty for Law courses and UGC / AICTE approved Degree in appropriate subjects for non law courses. The Programme in IIT Law School is especially designed to have law and non-law components in various Intellectual Property Right courses. As such various Science Faculties are needed for Science components in these courses. The selection has been done through a very high level selection committee, which inter-alias, included a Former Judge of Supreme Court of India and constituted as per norms of the IIT Institute followed the norms of IIT for short listing and selection. The allegation was not based on proper reference to the BCI Rules. In fact, the Institute has provided the same information in previous correspondences. The Institute has noted that you have used your imaginary inference to malign the Officer of the Institute. BCI Rules however, is in the public domain in the website of BCI. As per IIT norm, Registrar has no role in selection of Assistant Professor as alleged.

Contd..2nd

Issue No. (2)

(a) Copy of BOG Resolution for authorization of Registrar for financial operation of VGSOM Account.

Our response:

THIS DOES NOT EXIST.

(b) Copy of BOG, IIT Kharagpur, approved norm for sanction of such honorarium by the Registrar or Copy of delegation of financial power to the Registrar.

Our response:

The payment of alleged honorarium as per the copies enclosed by you does not contain any direction of the Registrar sanctioning the amount. In fact, the exclusive authority remains with the Dean of VGSOM for such sanction as per the following order of the Director: "On 06.10.2004, Director, IIT Kharagpur has approved the Administrative and Financial guidelines and procedures for PGDBM Programme. This approval inter alias states as under: Dean, VGSOM shall have the overall administrative and financial power and responsibility for this programme. Further, Coordinator (PGDBM) will be responsible and take actions on matters relating admission, academic, administrative and financial matters under guidance of Dean (VGSOM)"

The Dean (VGSOM) has wider financial power because of self-financing nature of the courses run. The Registrar has nothing to do in sanctioning the honorarium from the fund of VGSOM.

This is for your information.

Yours faithfully,

(T. K. Ghosal)
Public Information Officer

Countersigned

D Acharya

(D. Acharya)
Director
IIT Kharagpur

Copy to:
The Director,
Indian Statistical Institution,
B. T. Road
KOLKATA - 700 108 ..... for information please.

Grams : ALINDIABAR, New Delhi
Fax : Off. (91) 011-23231767
E-mail : bci.india@hub.nic.in
Website : www.barcouncilofindia.org

Phones : Office : 23231647
Secy's 23231648
Resi. : 22786209
22732923

बार कौंसिल ऑफ इन्डिया
BAR COUNCIL OF INDIA

21, राउज ऐवन्यू इन्सटीट्यूशनल एरिया
नई दिल्ली - 110 002
21, Rouse Avenue Institutional Area
New Delhi - 110 002

BCI:D: 792 /2008(LE/RTI)

11th July 2008

Shri Jadab Kumar Pal,
Qr. No.B-4/3, 1ST Floor ,
ISI Campus, 205 B.T. Road,
Kolkata-700 108.

Sir,

Ref: Your letter dated 11.6.2008.

With reference to your above mentioned letter under Right To Information Act 2005 I would like to inform you as follows:

Query No.1: I am enclosing a xerox copy of letter dated 24.1.2008 of Smt. S.K. Pal with inword entry Register number and endorsement on the same.

Query No.2: Rule 8, IN section B of the Bar Council of India in Part IV prescribes the following qualifications for law teachers:

> "Full time teachers of law including the Principal of the College shall ordinarily be holders of a Master's degree in law and where the holders of Master's degree in law are not available, persons with teaching experience for a minimum period of five years in law may be considered. Part time teaching other than one with LL.M. Degrees shall have a minimum practice of 10 years at the Bar."

However, there is no penal provision as indicated in your query.

Query No.3: I am enclosing a copy of the application submitted by RGSOIPL, IIT, Kharagpur seeking approval of affiliation of the Bar Council of India for.the five year law course.

Query No.4: RGSOIPL, IIT, Kharagpur has not submitted any Annual Returns for the years 2006-2007 and 2007-2008 to the Bar Council of India.

Query No.5: Bar Council of India has so far not relaxed Rule 8 of "Section-B" of the Bar Council of India Rules in Part IV regarding Standards of Legal Education and Recognition of Degrees in Law for admission as advocates for RGSOIPL, IIT, Kharagpur.

As regards Query No.6, it may be noted that under the Advocates' Act 1961 for enrolment as an advocate, candidate should possess LL.B. Degree of a University recognized by the Bar Council of India. It goes without saying that LL.B. degree possessed by the law teachers should be recognized by the Bar Council of India.

Query No.7: Bar Council of India does not have any authentic information about the query raised by you whether Rules of reservation for appointment in public service is applicable to RGSOIPL. This information has to be obtained from RGSOIPL, IIT, Kharagpur Copy of a letter written to RGSOIPL, IIT, Kharagpur in this regard is sent herewith.l

Query No.8: Bar Council of India has no power to relax Govt. of India Rules of reservation for appointment of teachers in RGSOIPL

Receipt No. 5531 dated 11.7.2008 for Rs.10/- (Rupees Twenty Only) sent by you towards application fee is sent herewith.

Yours faithfully

(S. RADHAKRISHANAN)
SECRETARY.

Encl : As above.